Heterodox Academy 82 Nassau Street #646 New York, NY 10038

Rachel Sipser As of November 17, 2025 rachel@swaybeta.ai 37 7th Ave, Apt 2, Brooklyn, NY 11217

Re: Terms of Your Engagement by HxA

Dear Rachel:

This letter agreement (this "Agreement") will confirm the understanding between you the undersigned ("you" or "Consultant") and Heterodox Academy ("HxA") with respect to the performance of the Services (as hereinafter defined) by you. For good and valuable consideration, the receipt and sufficiency of which is acknowledged, you hereby agree as follows:

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1. Services. HxA hereby engages you to provide services as set forth in Exhibit A attached hereto and incorporated herein ("Exhibit A") and as communicated to you by HxA from time to time (the "Services"), and you hereby accept such an engagement. You shall provide the Services in a professional, skillful manner, and commensurate with the responsibilities provided by HxA. In providing the Services, you shall at all times adhere to standards and practices which are ethical, consistent, effective and professional, and shall not exceed the scope of your engagement by HxA as expressly described as being part of the Services. For the sake of clarity, you shall not have any power or authority to obligate HxA or to assume or create any obligations, express or implied, on behalf of or in the name of HxA.

2. Term; Termination. The term of this Agreement (the "Term") shall commence as of November 17, 2025 (the "Effective Date") and shall continue for the period of time described in Exhibit A or until terminated by HxA or by you, for any reason, upon not less than seven (7) days prior written notice to HxA.

3. Compensation; Invoices; Expenses. In consideration for the satisfactory performance of the Services, HxA shall pay you the fees described in Exhibit A and shall continue to engage you in accordance with the provisions of this Agreement as described in Exhibit A. You shall be responsible for all expenses incurred while performing the Services unless such expenses have been pre-approved in writing by HxA. In addition to obtaining prior written approval from HxA to incur such expenses, you shall submit to HxA itemized invoices of all such expenses along with supporting receipts. HxA shall pay for such pre-approved expenses within thirty (30) days of HxA's receipt of an undisputed invoice and supporting receipts from you. If your engagement is terminated by HxA, you will be paid for all undisputed invoices reflecting Services satisfactorily performed through the date of such termination. Other than as described in this Section 3, you shall at your sole expense provide all materials and equipment used to perform the Services.

4. [Deleted].

5. Confidentiality. At all times during your engagement with HxA and thereafter, you agree to hold in strict confidence and not use, except for the benefit of HxA, or disclose to any individual or entity, any

Confidential Information (as hereinafter defined). "Confidential Information" means any and all confidential or non-public proprietary information, materials or ideas regarding HxA which you receive, acquire, assimilate or to which you have access during your engagement with HxA, regardless of the form or manner received, acquired, assimilated or accessed (whether disclosed orally, in writing or in machine-readable form) and whether received, acquired, assimilated or accessed before, on or after the Effective Date. However, Confidential Information shall not include information which you can demonstrate through relevant written records: (a) is or becomes publicly available through no wrongful act of yours or any person acting on your behalf, (b) was known to you prior to disclosure by HxA, or (c) properly comes into your possession from a third party which is not under any obligation to maintain the confidentiality of such information. Further, you shall be permitted to disclose Confidential Information pursuant to a judicial or other government order, provided that you have provided HxA with prompt written notice of any such request and with sufficient notice prior to any such disclosure so as to enable HxA to have a reasonable opportunity to seek legal remedies to maintain the confidentiality of such Confidential Information, and you shall comply with any applicable protective order or equivalent provided by HxA. As between HxA and you, all Confidential Information shall at all times remain the exclusive property of HxA.

6. Indemnification. Consultant agrees to indemnify and hold harmless Heterodox Academy ("HxA"), and its officers, directors, employees, and agents, from and against any third-party claims, losses, liabilities, damages, or expenses (including reasonable attorneys' fees) to the extent arising out of Consultant's gross negligence, willful misconduct, fraud, or knowing violation of law in connection with the Services. The indemnified party must give prompt written notice of any such claim. The indemnifying party may assume the defense with counsel reasonably acceptable to the indemnified party, and the indemnified party will reasonably cooperate. No settlement may be entered into without the indemnified party's consent, which will not be unreasonably withheld.

7. Independent Contractor. You are and shall remain an independent contractor of HxA and are not an employee, partner or agent of HxA. You acknowledge that it is your sole responsibility to report as income any compensation received from HxA and to make the requisite tax filings and payments to the appropriate federal, state or local tax authorities and otherwise to fully comply with all federal, state and local laws, regulations and orders. You agree that you are not entitled to any benefits provided to any employee of HxA and that you shall not have any claim against HxA for vacation pay, sick leave, retirement benefits, social security, worker's compensation, health or disability benefits, unemployment insurance benefits, or employee benefits of any kind.

8. Non-Disparagement. During the Term and for two (2) years thereafter, you agree not to make knowingly false or malicious statements about HxA or its employees, directors, officers, or agents. However, this restriction shall not apply to truthful comments made in response to a lawful subpoena or court action. Nothing in this clause shall be construed to limit legally protected rights (e.g., whistleblowing, agency cooperation, or other protected disclosures).

9. Force Majeure. Neither party shall be liable or deemed in breach for any failure or delay in performance under this Agreement (other than payment obligations) to the extent caused by events beyond its reasonable control, including acts of God, natural disasters, labor disputes, government actions, or interruptions in transportation or communications.

10. Governing Law; Jurisdiction. This Agreement shall be governed and construed in accordance with the laws of the State of New York, excluding New York's choice-of-law principles, and all claims, damages, losses or other liabilities arising out of or related to this Agreement, or the breach thereof, whether sounding in contract, tort or otherwise, shall likewise be governed by the laws of the State of New York, excluding New York's choice-of-law principles. You agree to personal and exclusive jurisdiction by and venue in the courts located within the County of New York, State of New York, and to receive service of process through certified mail or by other means sanctioned by law, and you expressly waive any claim of improper venue and any claim that such courts are an inconvenient forum.

11. Limitation of Liability. Except for each party's indemnification obligations under Section 6, and except for liability arising from a party's gross negligence, willful misconduct, fraud, or knowing violation of law, neither party shall be liable to the other for any consequential, incidental, special, or punitive damages, even if advised of the possibility of such damages. In no event shall either party's aggregate liability under this Agreement exceed the total fees paid or payable to Consultant under this Agreement.

12. Miscellaneous. This Agreement (including without limitation Exhibit A) sets forth the entire agreement and understanding between you and HxA relating to the subject matter hereof, and no modification of or amendment of this Agreement will be effective unless in a writing signed by you and HxA. No waiver by HxA of any breach of this Agreement shall be a waiver of any preceding or succeeding breach or shall be construed as a waiver of any other right, and HxA shall not be required to give notice to enforce strict adherence to the provisions of this Agreement. You agree that the language used in this Agreement is the language chosen by you and HxA to express your and its mutual intent, and that no rule of strict construction is to be applied against either you or HxA. In case any one or more of the provisions of this Agreement shall, for any reason, be held to be invalid, illegal or unenforceable in any respect, such invalidity, illegality or unenforceability shall not affect the other provisions of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein. This Agreement may be signed in counterparts, each of which shall constitute an original but when taken together shall constitute one and the same instrument. Facsimile or scanned signatures shall constitute original signatures for all purposes of this Agreement.

Please confirm your acceptance of the provisions of this Agreement by counter-signing below.

Sincerely yours,

Michael Regnier, Executive Director Heterodox Academy

ACCEPTED AND AGREED:

Print Name: Rachel Sipser

Date: **3/19/2025**

Exhibit A

This Exhibit A forms an integral part of that certain agreement (the "Agreement") by and between Heterodox Academy ("HxA") and Rachel Sipser ("Consultant"), to which this Exhibit A is attached, as of November 17, 2025 (the "Exhibit A Effective Date"). All capitalized terms not defined in this Exhibit A shall have the meanings ascribed to them in the body of the Agreement.

The following provisions shall be a material part of the Agreement:

Description of Services

Consultant will provide communications, outreach, and partnership development services for the Sway initiative. Services include:

- Instructor and university outreach — managing communications with faculty and institutional partners to support Sway adoption across campuses
- Partnership development — cultivating relationships with universities, practitioner organizations, and other stakeholders
- External communications and content — social media strategy, website content and updates, drafting communications for funders and university partners, and preparing materials for presentations and speaking engagements
- Instructor and student support — responding to inquiries, onboarding new instructors, troubleshooting, and synthesizing feedback
- Internal operations — coordinating across the project team and supporting grant-related communications and reporting

Compensation

$35.00 per hour (gross). Consultant shall submit itemized invoices to HxA reflecting hours worked, including any hours worked from the Exhibit A Effective Date through the date of execution. HxA shall pay undisputed invoices within thirty (30) days of receipt.

Term

November 17, 2025 through May 31, 2026.

IN WITNESS WHEREOF, Consultant and HxA have executed this Exhibit A as of the Exhibit A Effective Date.

HETERODOX ACADEMY

By:

Michael Regnier Executive Director

ACCEPTED AND AGREED:

Print Name: Rachel Sipser

Date: **3/19/2025**